



Tees and Hartlepool Port Authority Act 1969

CHAPTER iv

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ELIZABETH II



1969 CHAPTER iv

Act to change the name of the Tees and Hartlepool Port Authority; to extend the time for the completion of certain works by the Authority; to confer further powers on the Authority; and for other purposes.

[27th March 1969]

WHEREAS—

(1) By the Tees and Hartlepool Port Authority Act 1966 the Tees and Hartlepool Port Authority (hereinafter called "the Authority") was constituted and incorporated and invested with powers and duties as the harbour authority for the river Tees, the estuary thereof and the harbour and docks at Hartlepool; and as successor to the Tees Conservancy Commissioners, the Hartlepool Port and Harbour Commissioners, the British Transport Docks Board, the former borough of Stockton-on-Tees and the Tyne-Tees Steam Shipping Company Limited:

(2) By virtue of section 78 (Extension of time for completion of works) of the Tees Conservancy Act 1946 and section 3 (Extension of time for completion of works) of the Tees Conservancy Act 1959 the period limited by section 34 (Period for completion of works) of the Tees Conservancy Act 1920 for 1920 c. xxxvi.

the completion of certain works described in and authorised by that Act, so far as the same have not already been completed, was extended until the 2nd July, 1972:

(3) The Tees Conservancy Commissioners were not able to complete the said works before their undertaking was transferred to the Authority on the 1st January, 1967, and it will not be feasible for the Authority to complete those works within the period now limited for their completion:

(4) It is therefore expedient that the period limited for completion of those works should be further extended as hereby provided:

1958 c. 55.

(5) By the Hartlepool Order 1966, made by the Minister of Housing and Local Government under the Local Government Act 1958, the corporations of the former boroughs of Hartlepool and West Hartlepool were on the 1st April, 1967, dissolved and replaced by a new county borough of Hartlepool and it is therefore expedient that the name of the Authority should be changed in this Act provided:

(6) It is expedient that the other provisions of this Act should be enacted:

(7) The purposes of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, and with the advice and consent of the Lords Spiritual, Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1966 c. xxv.

1.—(1) This Act may be cited as the Tees and Hartlepool Port Authority Act 1969.

(2) The Tees and Hartlepool Port Authority Act 1966 and this Act may be cited together as the Tees and Hartlepool Port Authority Acts 1966 and 1969.

Interpretation.

2. In this Act—

“the Act of 1966” means the Tees and Hartlepool Port Authority Act 1966;

“the Authority” means the Tees and Hartlepool Port Authority incorporated by the Act of 1966 whose name is by this Act changed to “Tees and Hartlepool Port Authority”.

Change of
name.

3.—(1) As from the passing of this Act the name of the Authority shall be “Tees and Hartlepool Port Authority”.

(2) The provisions of Part IV (Change of name) of the Companies Clauses Act 1863 are hereby incorporated with this Act and for the purpose of those provisions the Authority shall be deemed to be a company incorporated for the purpose of carrying on an undertaking.

(1) For the definition of "hover vehicle" contained in Amendments subsection (1) of section 3 (Interpretation) of the Act of 1966 there shall be substituted the following definition:—

"hovercraft" has the meaning assigned thereto by section 4 of the Hovercraft Act 1968;".

(2) For the words "hover vehicle" in the definition of "seaplane" contained in subsection (1) of section 3 (Interpretation) of the Act of 1966, in paragraph (a) of subsection (2) of that section and in paragraph (a) of section 97 (Harbour master's powers) of the Act of 1966, there shall be substituted the word "hovercraft".

5. The period now limited by section 3 (Extension of time for completion of works) of the Tees Conservancy Act 1959 for the completion of the works described in and authorised by section 4 (Power to execute works) of the Tees Conservancy Act 1920 (which said provisions now apply to the Authority by virtue of the Act of 1966), so far as the same have not already been constructed, is hereby extended until the 30th June, 1984.

6. Section 29 (Application of sale proceeds, etc., of lands reclaimed) of the Tees Conservancy Act 1920 is hereby amended

(a) the omission, from subsection (1) thereof, of the words "other than the main approaches in subsection (2) of this section mentioned)";

(b) the omission of subsection (2) thereof;

(c) the insertion, in subsection (3) thereof, after the words "Work No. 2", of the words "Work No. 3".

For the words "shall subject to the provisions of subsection (3) of this section be reserved for all time" in subsection (2) of section 27 (Vesting, appropriation and disposal of lands reclaimed) of the Tees Conservancy Act 1920 there shall be substituted the words "may subject to the provisions of subsection (3) of this section be used in whole or in part (as may from time to time be agreed as aforesaid)".

Grants or loans in relation to land reclamation, etc.

8.—(1) The Authority may enter into and carry into agreements with any authority, body or person for the making that authority, body or person to the Authority of grants or loans towards the cost of—

- (a) land reclamation works and works in connection with the preparation of reclaimed land for the construction of industrial or other buildings;
- (b) the construction, extension or improvement of industrial or other buildings on reclaimed land or the provision or improvement of services or facilities relating thereto to the use thereof.

(2) For the purposes of the limitation on the total amount of money which may be borrowed under section 52 (Power to borrow) of the Act of 1966, any moneys borrowed pursuant to subsection (1) of this section shall be deemed to have been borrowed under that section.

(3) It shall not be lawful to exercise the powers of borrowing conferred upon the Authority by this section otherwise than in compliance with the provisions of any order for the time being in force made under section 1 (Treasury control of borrowing) of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

Repeal of provisions concerning the Slake, Hartlepool.
1850 c. cxi.

9.—(1) The provisions of section XVI (Slake not to be interfered with or its Waters) and section XVII (Penalty in case of interference with Slake or its Waters) of the Hartlepool West Harbour and Dock Act 1850 are hereby repealed, and Schedule 1 (Enactments applied to Authority) of the Act of 1966 is hereby amended by the deletion of the references therein to those sections.

(2) Notwithstanding the repeals effected by subsection (1) of this section the Authority shall not undertake any work of filling in the Slake or otherwise interfering with the drainage of water into or through the Slake (as the same exists at the passing of this Act) without the previous consent in writing of the mayor, aldermen and burgesses of the county borough of Hartlepool; such consent not to be unreasonably withheld; and any dispute as to whether such a consent has been unreasonably withheld shall be referred to and determined by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Costs of Act.

10. All costs, charges and expenses preliminary to and of a incidental to the preparing for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Authority.

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